

25VECV00209 25VECV00209

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25VECV00209 Hearing Date: July 8, 2026 Dept: NWI

25VECV00209 RANDI STARVISH vs CITY OF LOS ANGELES,
et al.

July 8, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling –

Determination of Good Faith Settlement

I.

Background

On January 15, 2025, Plaintiff Randi Starvish ("Plaintiff") filed a complaint against Defendants the City of Los Angeles (the "City"), Beverly Stevens ("Stevens"), and Does 1 to 50 alleging one cause of action for premises liability.

On February 21, 2025, Stevens filed a cross-complaint against Roes 1 to 30 alleging four causes of action: (1) comparative negligence; (2) equitable indemnity; (3) contribution; and (4) declaratory relief.

On April 16, 2025, Stevens filed an amended cross-complaint against the City and Roes 2 to 30.

On May 21, 2026, Stevens filed the instant unopposed motion for determination of good faith settlement.

II.

Requested Relief

Under Cal. Code of Civ. Proc. § 877.6, “[a] determination by the court that [a] settlement was made in good faith shall bar any other joint tortfeasor . . . from any further claims against the settling tortfeasor . . . for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” (CCP § 877.6(c).) Any party to an action may move for an order determining whether a settlement between the plaintiff and one or more alleged tortfeasors or co-obligors was made in good faith. (CCP § 877.6(a)(1).)

Section 877.6 requires “that the courts review [settlement] agreements made under its aegis to ensure that the settlements appropriately balance the . . . statute’s dual objectives” (i.e., providing an “equitable sharing of costs among the parties at fault” and encouraging parties to resolve their disputes by way of settlement.) (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 494.) In Tech-Bilt, the court set forth the factors to consider when determining whether a settlement is made in good faith. The Tech-Bilt factors are: (1) a rough approximation of plaintiff’s total recovery and the settlor’s proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; and (6) the existence of collusion, fraud, or tortious conduct aimed to injure the interests of the non-settling defendants. (Tech-Bilt, supra, 38 Cal.3d at p. 498-501.) Not every factor will apply in every case. (Dole Food Co., Inc. v. Sup.Ct. (Shell Oil Co.) (2015) 242 Cal.4th 894, 909.)

III.

Analysis

Stevens bring this motion after reaching a \$7,500 settlement agreement with Plaintiff. (See Motion at p. 3.) Notably, the motion is unopposed. This action arises from a trip and fall on a public sidewalk adjacent to Stevens’s property. (Id. at 4:3-21.) Stevens does not own, possess, or control the sidewalk. (Ibid.) Considering the Tech-Bilt factors, the Court finds that the amount is reasonable given Plaintiff’s

injuries, Stevens's lack of ownership or control over the dangerous condition, and the recognition that abutting owners are not liable for dangerous conditions on sidewalks unless the owner "somehow create[d] the injurious sidewalk condition." (Jones v. Deeter (1984) 152 Cal.App.3d 798, 803-806.)

Based on the foregoing, Stevens's motion is granted.

IV. Conclusion

Based on the foregoing reasons, the instant motion for determination of good faith settlement is GRANTED.

Moving party
is ordered to give notice.